

FORM 7.330. STATEMENT OF CLAIM (AUTO NEGLIGENCE)

(CAPTION)

STATEMENT OF CLAIM

The plaintiff, _____, sues the defendant, _____, and alleges: On or about _____, in the vicinity of _____, on a public highway in _____ County, Florida, plaintiff's motor vehicle, being operated by _____, collided with defendant's motor vehicle, being operated by _____; and the collision with plaintiff's vehicle was caused by the negligent and careless operation of defendant's vehicle, whereby plaintiff's vehicle was damaged and depreciated in value.

WHEREFORE, plaintiff demands judgment in the sum of \$ _____.
_____.

FORM 7.331. STATEMENT OF CLAIM (FOR GOODS SOLD)

(CAPTION)

STATEMENT OF CLAIM

Plaintiff, _____, sues defendant, _____, and alleges: There is now due, owing, and unpaid from defendant to plaintiff \$ _____ with interest since(date)....., for the following goods sold and delivered by plaintiff to defendant between(date)....., and(date).....:

(list goods and prices and any credits)

WHEREFORE, plaintiff demands judgment for damages against defendant.

FORM 7.332. STATEMENT OF CLAIM (FOR WORK DONE AND MATERIALS FURNISHED)

(CAPTION)

STATEMENT OF CLAIM

Plaintiff, _____, sues defendant, _____, and alleges: There is now due, owing, and unpaid from defendant to plaintiff \$ _____ with interest since(date)....., for the following items of labor and materials furnished to defendant at his/her request between(date)....., and(date).....:

(list time and materials, showing charges therefor and any credits)

WHEREFORE, plaintiff demands judgment for damages against defendant.

FORM 7.333. STATEMENT OF CLAIM (FOR MONEY LENT)

(CAPTION)

STATEMENT OF CLAIM

Plaintiff, _____, sues defendant, _____, and alleges: There is now due, owing, and unpaid from defendant to plaintiff \$ _____ for money lent by plaintiff to defendant on(date)....., with interest thereon since(date).....

WHEREFORE, plaintiff demands judgment for damages against defendant.

FORM 7.334. STATEMENT OF CLAIM (PROMISSORY NOTE)

(CAPTION)

STATEMENT OF CLAIM

Plaintiff, _____, sues defendant, _____, and alleges:

1. This is an action for damages that do not exceed the jurisdictional amount pursuant to Florida Small Claims Rule 7.010(b).

2. On(date)....., defendant executed and delivered to plaintiff a promissory note, a copy being attached, in _____ County, Florida.

3. Defendant failed to pay

(a) said note when due; or

(b) the installment payment due on said note on(date)....., and plaintiff (has/has not) elected to accelerate payment of the balance.

4. There is now due, owing, and unpaid from defendant to plaintiff \$ _____ on said note with interest since(date).....

WHEREFORE, plaintiff demands judgment for damages against defendant.

Committee Notes

1972 Amendment. Attach copy of note to each copy of the statement of claim. Use 3(a) or (b) and 5 as applicable.

FORM 7.335. STATEMENT OF CLAIM (FOR RETURN OF STOLEN PROPERTY FROM PAWNBROKER)

(CAPTION)

STATEMENT OF CLAIM FOR RETURN OF PROPERTY FROM PAWNBROKER

Plaintiff, _____, sues defendant/pawnbroker, _____, and alleges:

1. This is an action for the return of stolen or misappropriated property pursuant to section 539.001, Florida Statutes.

2. Plaintiff is the owner of the following described property:

3. The above-described property was stolen or otherwise misappropriated from plaintiff on or about the __ day of _____, 20___. A copy of the law enforcement report outlining the theft/misappropriation is attached hereto and incorporated into this statement of claim.

4. The above-described property is currently in the possession of defendant and is located at a pawnshop as defined in section 539.001, Florida Statutes, the address of which is _____.

5. Plaintiff has complied with the procedural requirements of section 539.001, Florida Statutes. Specifically, plaintiff notified the pawnbroker of plaintiff's claim to the property:

_____ by certified mail, return receipt requested, OR

_____ in person evidenced by a signed receipt.

The notice contains a complete and accurate description of the purchased or pledged goods and was accompanied by a legible copy of the aforementioned police report regarding the theft or misappropriation of the property. No resolution between plaintiff and defendant pawnbroker could be reached within 10 days after the delivery of the notice.

WHEREFORE, the plaintiff demands judgment for the return of the property. Plaintiff further asks this court to award plaintiff the costs of this action, including reasonable attorneys' fees.

Plaintiff (signature)

Name

Address

City, State, Zip code

Day telephone number

State of Florida

County of _____

The foregoing instrument was acknowledged before me on(date)....., by _____, who is personally known to me or has produced _____ as identification and who _____ did/did not _____ take an oath.

WITNESS my hand and official seal, on(date).....

Notary Public
State of Florida

Note to Clerk of Court and to Sheriff: Pursuant to Section 539.001(15), filing fees and service fees shall be waived. Waiver does not require the filing of an affidavit of insolvency.

**FORM 7.336. STATEMENT OF CLAIM FOR REPLEVIN (FOR
RETURN OF PERSONAL PROPERTY/WEAPON
FROM GOVERNMENT ENTITY)**

(CAPTION)

STATEMENT OF CLAIMS FOR REPLEVIN

Plaintiff(s) _____ sues Defendant(s) _____ and alleges:

1. This is an action to recover possession of personal property.

2. The description of the property is _____

3. To Plaintiff's best knowledge, information, and belief the value of the property is \$ _____ and its location is _____

4. Plaintiff is the owner of the claimed property or is entitled to possession of it by virtue of the following source of title, or right of possession: _____

(If interest is based on a written instrument a copy is attached.)